

Opposition do not constitute evidence. “Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*; see also *In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

Defendant presents no evidence that shows how a delay in the case might impact him, nor indicating if or how drastic an increase in litigation expenses will occur if leave to amend is granted. While it is true that granting leave to amend will require additional responsive pleadings, and possibly more discovery and motion practice – that alone is insufficient to deny a party an opportunity to amend. “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Higgins v. DelFaro* (1981) 123 Cal.App.3d 559, 564.) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice.

Conclusion

Based on the above, Plaintiff’s motion for leave to file the Second Amended Complaint is **granted**. Plaintiff shall file the Second Amended Complaint within 10 days of notice of entry of the order on this motion.

6. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR AUDREY WELSCH**
FILED BY:
TENTATIVE RULING:

The Court was awaiting further information, which has not yet been filed. Parties to appear.

7. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
***HEARING ON MOTION IN RE: STAY PROCEEDINGS**
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Motion was withdrawn on August 25, 2026. The Court confirms the further case management conference on March 2, 2027, at 8:30 a.m. in Department 10.

8. 9:00 AM CASE NUMBER: C25-03006
CASE NAME: MICHAEL KITTERMAN VS. DR. CHRIS WANG, MD
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Before the Court is Defendant John Muir Health’s Demurrer. Kitterman has filed no opposition. Indeed, it does not appear that Kitterman has participated in his case for several months. The Court is moderately concerned that, given the facts underlying this action, Mr. Kitterman may have passed

away. Notably, since filing documents relating to service in mid-February, Mr. Kitterman has filed nothing and failed to respond to inquiries from Court and counsel. He has never served the individual defendant. Given the existing OSC, the Court sua sponte continues this hearing until October 15, 2026, to give Plaintiff or a representative an opportunity to appear or clarify.

9. 9:00 AM CASE NUMBER: C25-03006
CASE NAME: MICHAEL KITTERMAN VS. DR. CHRIS WANG, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Before the Court is Defendant John Muir Health's Motion to Strike. Kitterman has filed no opposition. Indeed, it does not appear that Kitterman has participated in his case for several months. The Court is moderately concerned that, given the facts underlying this action, Mr. Kitterman may have passed away. Notably, since filing documents relating to service in mid-February, Mr. Kitterman has filed nothing and failed to respond to inquiries from Court and counsel. He has never served the individual defendant. Given the existing OSC, the Court sua sponte continues this hearing until October 15, 2026, to give Plaintiff or a representative an opportunity to appear or clarify.

10. 9:00 AM CASE NUMBER: C25-03832
CASE NAME: JOYCE ESTEY VS. ALBERTO MALDONADO
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MALDONADO, ALBERTO
TENTATIVE RULING:

Off-calendar; motion withdrawn by moving parties on August 25, 2026.

11. 9:00 AM CASE NUMBER: C26-00575
CASE NAME: KEMI RANDOLF-GODDARD VS. SELECT PORTFOLIO SERVICING, INC
HEARING ON DEMURRER TO COMPLAINT
FILED BY: SELECT PORTFOLIO SERVICING, INC
TENTATIVE RULING:

Defendant Select Portfolio Servicing, Inc. ("Defendant") brings this demurrer to the complaint ("Complaint") of plaintiff Kemi Rosalia Randolph-Goddard ("Plaintiff"). Defendant challenges the entire Complaint and each of the four individual causes of action.

For the reasons discussed below, the Court **OVERRULES** Defendant's demurrer to the first, second, and fourth causes of action, and **SUSTAINS** the demurrer to the third cause of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Gino D. Palmieri Decl., ¶¶ 3-4; Code Civ. Proc.,